

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Danny Rivera	Team: Team # 1	CCRB Case #: 201104909	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 04/18/2011 8:53 AM	Location of Incident: 111th Avenue and 143rd Street	18 Mo. SOL 10/18/2012	Precinct: 113
Date/Time CV Reported Mon, 04/18/2011 3:39 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 04/18/2011 3:40 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Dennis Jaeger	09389	940297	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Bentivegna	13790	934482	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Dennis Jaeger	Force: PO Dennis Jaeger pointed his gun at § 87(2)(b)	A . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the Civilian Complaint Review Board via the agency's online website (encl. 4A-4B). § 87(2)(b) stated that at approximately 8:53 a.m. on April 18, 2011, she was driving on 111th Avenue in Queens when she stopped at a stop sign at 143rd Street. After crossing the intersection, § 87(2)(b) was pulled over by two officers, identified via investigation as PO Dennis Jaeger and PO Joseph Bentivegna of the 113th Precinct, in a marked patrol car. The following allegation arose out of this interaction:

- **Allegation A – Force:** PO Dennis Jaeger pointed his gun at § 87(2)(b) § 87(2)(g). It is therefore recommended that **Allegation A be closed as unsubstantiated.**

§ 87(2)(g) did not respond to phone calls made to her in an attempt to offer her mediation.

Results of Investigation

Civilian Statement(s)

- **Complainant/Victim:** § 87(2)(b) § 87(2)(b) *black female*, § 87(2)(b), *black hair, and brown eyes.* § 87(2)(b) *is a supervisor at* § 87(2)(b).

§ 87(2)(b) provided an initial statement on April 18, 2011 (encl. 3A-3D), a phone statement on April 20, 2011 (encl. 5), and was interviewed at the CCRB on April 27, 2011 (encl. 6A-6F). § 87(2)(g) At approximately 8:53 a.m. on April 18, 2011, § 87(2)(b) was driving westbound along 111th Avenue in the Jamaica section of Queens in her 2004 Scion XB, when she observed a patrol car at the intersection of 111th Avenue and 143rd Street. There were no other individuals in her vehicle at the time of the incident, and § 87(2)(b) was driving no faster than thirty miles an hour. § 87(2)(b) then stopped her vehicle at that intersection upon seeing a stop sign. A few seconds later § 87(2)(b) noticed, via her rearview mirror, the flashing lights of the same patrol vehicle from the previous intersection. However, after noticing that she had stopped in front of a driveway, § 87(2)(b) slowly moved her vehicle a very short distance—"not even an inch"—at which time she heard the brief blast of a siren. At that point, § 87(2)(b) turned her head and body to the right and reached back to retrieve her handbag, which was in the back seat of the vehicle. Shortly thereafter, § 87(2)(b) looked up and, through the lightly-tinted rear window, observed a uniformed officer, PO Dennis Jaeger (white male, 5'7" tall, slim build, late 20's to early 30's), pointing his service weapon at her; he then said, "Don't move!" PO Jaeger was standing behind the passenger-side door of his patrol vehicle, which itself was approximately two feet behind § 87(2)(b)'s vehicle. In her initial statement, § 87(2)(b) stated that Officer Jaeger and his partner, PO Joseph Bentivegna, had both drawn their weapons.

At that point, § 87(2)(b) immediately stopped, turned around while still in her vehicle, and raised her hands. § 87(2)(b) did not notice PO Jaeger after she turned around, as she was “scared out of [her] mind.” § 87(2)(b) subsequently noticed PO Bentivegna (white male, 5’4” to 5’6” tall, slim build, completely bald, in his 20’s), approaching her; he had what may have been his left hand on his holstered weapon. § 87(2)(b) noticed PO Bentivegna through the side mirror on the left-hand side of her vehicle. PO Bentivegna then yelled for § 87(2)(b) to roll down her window, an order with which she complied. PO Bentivegna then asked § 87(2)(b) something to the effect of, “Didn’t you hear the sirens? Didn’t you see the lights behind you?” § 87(2)(b) replied, “Sir, this is the first time this is happening to me; I’m not used to this. I was just reaching for my pocketbook to get my ID because I know what you’re going to ask for.” PO Bentivegna then informed § 87(2)(b) that, for safety reasons, she should stop her vehicle every time she sees flashing lights and hears sirens. § 87(2)(b) indicated that she understood PO Bentivegna’s point, after which PO Bentivegna requested her documentation; § 87(2)(b) reached behind her a second time. After § 87(2)(b) gave PO Bentivegna her documentation, he returned to his patrol vehicle. Approximately five to ten minutes later, PO Bentivegna exited the patrol vehicle from the driver-side and returned with a summons (§ 87(2)(b) prepared by PO Jaeger of the 113th Precinct) § 87(2)(b), and reminded § 87(2)(b) that she should not move her vehicle if she is pulled over. At no time did § 87(2)(b) speak with PO Jaeger.

NYPD Statement(s):

Subject Officer: PO DENNIS JAEGER

- § 87(2)(b) white male, § 87(2)(b), blonde hair, and blue eyes
- On April 18, 2011, PO Jaeger worked in uniform, from 7:05 a.m. until 3:40 p.m., with PO Joseph Bentivegna. PO Jaeger was assigned to patrol sectors H, I, and M, and was the recorder in marked patrol car #2141.

Summons #§ 87(2)(b)

PO Jaeger issued this summons to § 87(2)(b) § 87(2)(b) § 87(2)(b)

Memo Book

PO Jaeger’s memo book (encl. 8A-B) reflects that he conducted a car stop at 8:53 a.m. because § 87(2)(b) § 87(2)(b) § 87(2)(b). The memo book also reflects that PO Jaeger issued summons #§ 87(2)(b)

CCRB Testimony

PO Dennis Jaeger was interviewed at the CCRB on July 18, 2011 (encl. 9A-9B). PO Jaeger did not recall the incident. Other than what he had written in his memo book, PO Jaeger did not have an independent recollection of the vehicle stop. PO Jaeger was subsequently presented with a photograph of § 87(2)(b) but PO Jaeger stated that he did not remember her. PO Jaeger did not recall pointing his service weapon at § 87(2)(b) PO Jaeger did not recall which officer gave the summons that he prepared to § 87(2)(b) PO Bentivegna could have given the summons to her, as he and PO Jaeger “don’t usually cross [over] between the cars.”

Witness Officer: PO JOSEPH BENTIVEGNA

- § 87(2)(b) white male, § 87(2)(b), brown hair, and brown eyes
- On April 18, 2011, PO Bentivegna worked in uniform, from 7:05 a.m. until 3:40 p.m., with PO Dennis Jaeger. PO Bentivegna was assigned to patrol sectors H, I, and M, and was the operator in marked patrol car #2141.

Memo Book

PO Bentivegna's memo book (encl. 10A-10C) reflects that a vehicle stop was conducted at 143rd Street and 111th Avenue, and that PO Jaeger prepared a summons in relation to the stop.

CCRB Testimony

PO Joseph Bentivegna was interviewed at the CCRB on July 18, 2011 (encl. 11A-11B). PO Bentivegna did not recall the incident. PO Bentivegna stated that, as the operator of the vehicle, he "probably did" have an interaction with § 87(2)(b) but was uncertain if that was actually the case. PO Bentivegna was subsequently presented with a photograph of § 87(2)(b) when asked if he recognized her, PO Bentivegna stated, "Not at all." PO Bentivegna did not recall anything about the summons. PO Bentivegna added that during a car stop, he and his partner often switch sides: one officer will go to the driver-side, while the other will stand by the passenger-side of a civilian's vehicle. PO Bentivegna did not recall pointing his service weapon at § 87(2)(b) on the morning of the incident. PO Bentivegna did not recall if PO Jaeger pointed his weapon at § 87(2)(b)

Summons for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of July 28, 2011 with regard to the incident (encl. 14B).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2).

Subject Officer(s) CCRB History

- PO Dennis Jaeger has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 1).

Conclusion

Identification of Subject Officer(s)

§ 87(2)(b) stated that the officer who pointed his weapon at her was standing behind the passenger-side door of his patrol vehicle. PO Jaeger testified that he was the recorder during the incident, while PO Bentivegna confirmed that he was the operator of the officers' RMP. § 87(2)(g) PO Jaeger was seated in the passenger-side. § 87(2)(b) also stated that she observed PO Bentivegna exiting his patrol vehicle from the driver-side, and that he subsequently gave her a summons that was prepared by PO Jaeger. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Force: PO Dennis Jaeger pointed his gun at § 87(2)(b). § 87(2)(b) alleged that PO Jaeger pointed his service weapon at her while standing at his patrol vehicle. For his part, PO Jaeger stated that he did not recall the incident or any particulars regarding the car stop. PO Jaeger's partner, PO Bentivegna, also claimed not to remember this incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation A be closed as *unsubstantiated***.

Team: One

Investigator:	_____	_____	_____
	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date